

25STCV09416 25STCV09416

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-14

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Case Number: 25STCV09416 Hearing Date: July 14, 2026 Dept: 529

SHANON

WILSON VS FCA US, LLC., ET AL

MOTION TO COMPEL

INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 AND
REQUEST FOR MONETARY SANCTIONS

Date

of Hearing: June 29, 2026 Trial Date: None set.

Department:

529 Case

No.: 25STCV09416

Moving

Party: Plaintiff Shanon Wilson

Responding

Party: Defendant FCA US, LLC

BACKGROUND

This is a lemon law action. On March 28, 2025, Plaintiff Shanon Wilson initiated this action against Defendants FCA US, LLC and Aaron Chrysler Dodge Jeep Ram. On October 2, 2025, Plaintiff filed a First Amended Complaint asserting causes of action for various violations of the Song-Beverly Consumer Warranty Act as well as negligent repair and fraudulent inducement – concealment.

[TENTATIVE]

RULING:

Plaintiff Shanon Wilson's Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure §871.26 and Request for Monetary Sanctions is DENIED.

DISCUSSION

Plaintiff Shanon Wilson moves this court for an order compelling Defendant FCA US LLC to comply with Code of Civil Procedure § 871.26 by producing all documents required under subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13) and impose mandatory sanctions against FCA US LLC and its counsel of record in the amount of \$2,500.00 pursuant to California Code of Civil Procedure § 871.26(j)(1).

Effective January 1, 2025, in an action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20 (above), the parties shall: "Within 60 days after the filing of the answer or other responsive pleading, ... without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h) [of Section 871.26]." (CCP § 871.26(b).) 22

Plaintiff argues FCA was to provide complete, verified, and unfiltered mandatory disclosures under section 871.26(h) by September 12, 2025 (60 days after it served its demurrer on July 14, 2025). However, as of the date of this motion, FCA has failed to provide verified responses, has produced only a fraction of the records required by the statute, and has systematically withheld documents that exist in FCA's own computerized systems and are directly accessible by a single search term: the Subject Vehicle's VIN.

In opposition, FCA argues it has timely produced all non-confidential documents and simultaneously requested that opposing counsel execute a narrowly tailored protective order routinely agreed upon by the parties in other lemon law litigation. FCA contends because it has produced all documents required under Section 871.26 as well as written responses, Plaintiff's motion is moot and should be denied. At a minimum, Plaintiff's request for sanctions should be denied. FCA further argues some of the discovery sought exceeds the scope of discovery required under Section

871.26, including the DealerConnect Report, AutoPay Claims, and Complaint Claims. FCA further asserts LOP 85-41-XX and LOP 08-19-XX-40 records are not reasonably related to the issues in the Vehicle. FCA also notes Plaintiff's counsel's declaration improperly includes confidential material.

The court denies the motion to compel compliance.

FCA has produced the initial disclosure documents as required by Code of Civil Procedure section 871.26. The court agrees DealerConnect Report, AutoPay Claims, Complaint Claims as well as LOP records exceed the scope of discovery required under Section 871.26. Plaintiff has not sufficiently demonstrated FCA must do an independent search for these records when FCA has produced all Warranty Claim Records in its possession.

As for the confidential material produced, Defendant FCA will need to bring an ex parte application to seal any confidential records which have been filed with the court

Sanctions

Plaintiff seeks \$2,500 in monetary sanctions pursuant to Code of Civil Procedure section 871.26(j)(1). Plaintiff's request for sanctions pursuant to Section 871.26(j)(1) is DENIED. FCA has shown good cause.